

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 27/07/2023, a complaint was filed with this Agency by A.A.A. and B.B.B., on behalf and representation of their minor daughter, C.C.C. (hereinafter, the complaining party), against EDA TV CONSULTING S.L. with CIF B88605266 (hereinafter, EDA TV), for a possible breach of personal data protection regulations.

The reasons for the complaint are as follows:

Publication on ***DATE.1 on the EDA TV website - link to the publication provided - of images obtained through the Telegram channel '***CHANNEL.1', in which the complaining party appears, a minor (17 years old) who did not consent to the aforementioned processing. In the images, the complaining party appears with her father attending the last edition of the MadCool music festival. It is indicated that this digital newspaper also has a Telegram channel where they publish links to their news and which has more than 8,000 subscribers. The news is also posted on Facebook, where it has 80,000 followers, Twitter, with more than 96,000 followers, Instagram, with more than 66,000 followers, and YouTube, with 336,000 followers.

Along with the complaint, the complaining party provides screenshots of the Telegram channel, the Facebook profile, and the Twitter account of EDA TV.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), on 26/09/2023, the complaint was forwarded to EDA TV electronically, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding, which was carried out electronically in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was reiterated by postal means on 09/10/2023 and effectively notified to EDA TV on 11/10/2023.

THIRD: On 30/10/2023, in accordance with Article 65.5 of the LOPDGDD, the complaint filed by the complaining party was admitted for processing.

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FOURTH: On 10/11/2023, the response document from EDA TV to the transfer proceedings was received.

In this response, EDA TV argues that the unpixelated images of the claimant, in which she could potentially be recognized, were published on the Telegram channel '***CANAL.1', and therefore claims to lack control over the content included therein. Similarly, it states that the comments resulting from the publication of these images on the aforementioned Telegram channel are outside its responsibility and, ultimately, rejects any type of relationship with the mentioned Telegram account. In its document, EDA TV acknowledges the publication of a news article, accompanied by a single image, in which the father of the claimant appears alongside a minor—whom he acknowledges could be his daughter—and states that the image in question is pixelated and has a watermark added to it precisely so that the photograph can be seen with just enough clarity to allow the reader to identify only Mr. A.A.A. (a public figure) and not the woman accompanying him. To this circumstance, it adds that the face of the accompanying woman is not only pixelated and has the watermark but is also completely covered by her hand, making it impossible to recognize the identity of this person in question.

In its view, it is precisely due to the impossibility of recognizing the identity of the young woman that

the news was titled referring to the father of the claimant accompanied by a woman, as from the image neither the identity nor the age of the woman can be appreciated because she is barely recognizable. It also points out that it is of utmost importance to consider that, while the right to one's own image and the right to honor of the young woman (especially being a minor and a person outside the public sphere) must be protected above all else (with it being more than proven that the article does not violate any regulations regarding data protection because no identifiable face is shown, nor does any part of its content infringe upon the honor of the minor), the complainant is a recognized public figure within the national political landscape and, therefore, is considered a figure of public interest for both readers and media outlets, potentially being the subject of news, articles, etc., from the press at any moment. It also considers it relevant to highlight that the photograph was taken in a public space (and not within any private property) and in the context of a music festival that is usually attended by many famous and well-known personalities at both national and international levels, so it should not be surprising that the press takes advantage of these spaces to photograph famous personalities who may attend such events.

It states that nowhere in the article is there any mention of the condition of the woman appearing in the photograph, as they were not aware of who this person was until the notification of the claim was received. There are also no insults or slanders against the minor that could be considered an attack on her honor and good name. For all these reasons, it cannot be considered that the content of this article has violated any rights.

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considers that there would be no responsibility as the arguments presented in the complaint lack any type of foundation.

Finally, it notes that measures have already been taken to prevent such incidents and claims from occurring, namely: pixelation of images, inclusion of watermarks, drafting of articles based on verified and corroborated facts where events and situations that may occur to known individuals in public environments are described, etc.

FIFTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1) On 29/02/2024, this Agency carried out a diligence by which it verified that the news published along with the image of the minor by EDA TV remains available on its Facebook profile (**URL.1).

2) On 13/05/2024, this Agency carried out a diligence by which it verified that the news on EDA TV's Twitter profile (**URL.2) remains available, but not the image in question.

3) On 14/05/2024, this Agency carried out the following diligences:

- It was verified that the news on EDA TV's Facebook profile (**URL.3) remains available, but not the image in question.

- It was verified that on EDA TV's Telegram channel (**URL.4) the news and the image in question remain available.

- The reach of EDA TV on social media is as follows: Telegram channel: 8,751 followers, Facebook: 83,000 followers, Twitter: 94,431 followers, Instagram: 75,400 followers, and YouTube: 356,000 followers.

SIXTH: According to the report from the AXESOR tool dated 14/05/2024, EDA TV in the year 2022 had a sales volume of XXX.XXX euros and the workforce consisted of XX employees.

SEVENTH: On 23/05/2024, the Director of the Spanish Data Protection Agency agreed to initiate sanctioning proceedings against EDA TV, in accordance with the provisions of Articles 63 and 64 of the LPACAP, in order to impose a fine of €5,000 for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

Furthermore, the aforementioned initiation agreement ordered EDA TV to adopt the provisional measure consisting of suspending the processing of personal data subject to the complaint by removing the content published on the Telegram channel of EDA TV ('(...)'). EDA TV, within ten working days from the notification of the initiation agreement of the sanctioning procedure, was to justify to this Agency the adoption of said provisional measure.

This initiation agreement, in accordance with the rules established in the LPACAP, was notified to EDA TV on 30/05/2024, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from EDA TV.

Article 64.2.f) of the LPACAP -a provision of which EDA TV was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the accused, and the sanction that could be imposed. Therefore, considering that EDA TV has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

NINTH: After the period for adopting the agreed provisional measure had also elapsed, on 19/06/2024, this Agency accessed EDA TV's Telegram channel ('(...)') and verified that the publication subject to the complaint remained accessible. Furthermore, the number of followers of its Telegram channel ('(...)') had increased to 8,900.

In light of all that has transpired, the Spanish Data Protection Agency considers the following facts to be proven,

PROVEN FACTS

FIRST: EDA TV is responsible for the website ***WEB.1, the Telegram channel ('***CANAL.1'), and the profiles on the social networks Facebook ('***PROFILE.1') and Twitter ('***PROFILE.2').

SECOND: On ***DATE.1, EDA TV published on its website (***WEB.1) a news article, under the headline "***HEADLINE.1" with, among others, the following phrases: (...).

Along with the news identifying the father of the complainant, there is a photograph of both with a watermark from EDA TV (XXXXXXX).

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The photograph shows the male wearing green pants and a blue sweater, and the female wearing a light shirt and jeans, with her hand partially covering her face.

THIRD: ON ***DATE.1, EDA TV disseminated the news subject to the claim through its Telegram channel ('***CHANNEL.1') and its profiles on the social networks Facebook ('***PROFILE.1') and Twitter ('***PROFILE.2').

FOURTH: As of 29/02/2024, the news along with the image of the claiming party remained published on EDA TV's Facebook social media profile ('***PROFILE.1'), but on 14/05/2024, the image no longer appears.

FIFTH: As of 13/05/2024, the news in question continued to be published on EDA TV's Twitter social media profile ('***PROFILE.1'), but not the image of the claiming party.

SIXTH: As of 14/05/2024, the news along with the image of the claiming party continued to be published on EDA TV's Facebook social media profile ('***PROFILE.2'), but the image no longer appears.

SEVENTH: As of 14/05/2024, the news and the image were still available on EDA TV's Telegram channel ('***CHANNEL.1').

EIGHTH: On 14/05/2024, the number of followers of EDA TV on social media is as follows: 8,751 on Telegram, 83,000 on Facebook, 94,431 on Twitter, 75,400 on Instagram, and 356,000 on YouTube.

NINTH: By agreement to initiate sanctioning proceedings dated 23/05/2024, EDA TV is ordered to adopt, within ten working days, the provisional measure consisting of the removal of the content

published on its Telegram channel that is subject to the claim.

As of 19/06/2024, after the deadline granted for compliance with the indicated provisional measure, it had not been adopted as the publication of the image of the claiming party subject to the claim remained accessible on the Telegram channel of the claimed party ('***CHANNEL.1').

TENTH: As of 19/06/2024, the number of followers of EDA TV's Telegram channel ('***CHANNEL.1') is 8,900.

ELEVENTH: EDA TV in the year 2022 has a sales volume of XXX.XXX euros and the workforce consisted of XX employees.

LEGAL GROUNDS

I

Competence and Procedure

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In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

In turn, paragraph 2 of the same provision defines data processing as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction."

Finally, paragraph 7 defines the data controller as "the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States."

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since EDA TV has published on its website the image of the claiming party as an accompaniment to news related to her father. It is also noted that this news has been disseminated on EDA TV's Telegram channel and Facebook and X (formerly Twitter) profiles, and that the publication remains accessible on its Telegram channel.

Moreover, it should be noted that EDA TV carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

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Right to Data Protection

It should be noted that this procedure is initiated as a result of the complaint filed by the claimant due to EDA TV publishing a news article on its website that was accompanied by one image—and not several as initially indicated in the complaint—which reproduced an image that was also published on a third party's Telegram channel. Therefore, the complaint is directed against this publication made by EDA TV, and not against the publication of the same image—among others—made by a third party on their Telegram channel. Thus, this initiation agreement will be limited to analyzing the possible violation of data protection regulations concerning the publication made by EDA TV.

Having established the above, and as reflected in the file, the news article to which the claimant's image was attached clearly identified their father—his name, surname, and image—and the location where the image was captured—in this case, a public space. In this context, the claimant was referred to as “(...)”. Both the image and the news article it accompanied were disseminated by EDA TV through its social media profiles, which, as indicated in the Established Facts, have a large number of followers.

Furthermore, as has been noted, the image remains available on EDA TV's Telegram channel. According to the Background, EDA TV believes that the published image does not allow for the identification of the claimant—therefore, we would not be dealing with the processing of personal data. This is because, prior to publication, they state that they pixelated the claimant's face, a measure that is complemented by the incorporation of a watermark and the fact that the face was obscured by the claimant's hand.

In this regard, it is worth recalling that, according to Article 4.1 of the GDPR, personal data can be understood as “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

In the present case, we are faced with the publication of information that makes the claimant identifiable, since, in addition to the indisputable publication of features that are characteristic of them, such as parts of their body or hair, which allow us to conclude that it is a young woman, the information provided regarding the location where the photograph was taken—a relevant music festival whose dates are publicly known—and the nominal identification of the man accompanying her—in this case, her father—would make her identification possible. Similarly, contrary to what EDA TV has stated, it cannot be concluded that the published image has been pixelated. We are therefore dealing with the processing of personal data.

Having established the above, it is important to remember that individuals have the power of disposition over their personal data and its dissemination, and undoubtedly, the person whose personal data is disseminated in violation of the legal order deserves protection.

Thus, the Constitutional Court ruling STC 292/2000 of November 30 states that “the content of the fundamental right to data protection consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally concretized in the authority to consent to the collection, obtaining, and access to personal data, their subsequent storage and processing, as well as their possible use or uses by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the authority to know at all times who holds that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.”

In this sense, and regardless of what the legal basis legitimizing the processing may be, every data

controller must respect the principles of processing set out in Article 5 of the GDPR.

The principles relating to processing are, on the one hand, the starting point and the closing clause of the legal framework for data protection, constituting true guiding rules of the system with intense expansive force. On the other hand, having a high level of specificity, they are mandatory norms that can be infringed.

More specifically, it is worth highlighting the principle set out in Article 5.1.c) of the GDPR which states that:

“1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

IV

Balance between the right to personal data protection and other fundamental rights and freedoms

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However, the fundamental right to the protection of personal data is not absolute, as it may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the fundamental right to freedom of information or expression, being weighed on a case-by-case basis.

In this regard, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully transferable to the current Article 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out.”

That said, the fundamental rights to freedom of information or expression are also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the right to honor, personal and family privacy, and one's own image.

Thus, we will cite the Supreme Court ruling STS 50/2017, First Civil Chamber, of January 27, 2017 (appeal 2139/2015) which states:

“In this sense, it is reiterated jurisprudence (see among the most recent, and as a doctrinal summary, the ruling 605/2015, of November 3) that the abstract prevalence of the freedoms of expression and information ‘can only be reversed in the specific case by considering the relative weight of honor and privacy according to the specific circumstances at hand, provided that the information and opinions disclosed refer to matters of general interest or public relevance (either by the individuals or by the subject matter), that the communication does not involve the unnecessary use of unequivocally offensive or degrading expressions and, in the case of freedom of information, provided that they are truthful, specifying in any case that in the realm of protection of the right to privacy, the criterion for determining the legitimacy or illegitimacy of intrusions is not that of truthfulness but that of the public relevance of the disclosed fact, that is, that its communication to the public, even if true, is necessary based on the public interest of the matter being reported” (the emphasis is ours).

It is not about giving precedence to one fundamental right over another but about finding a balance between both that allows for the reconciliation of both rights; a reconciliation to which the European legislator itself refers in Article 85 of the GDPR. And one of the elements to be considered is, precisely, whether the intrusion—in the case at hand, the processing of personal data of a minor—is necessary to achieve the intended purpose; in this specific case, with the publication of the information.

At this point, it is necessary to bring to light the jurisprudence that analyzes the relationship between freedom of information and expression, on one hand, and the rights of those affected by informative content.

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Thus, the European Court of Human Rights (ECHR), in its judgment of June 19, 2012, delivered in case number 1593/2006, states the following:

“Although the press must not overstep certain limits, particularly with regard to the reputation and rights of others or to the proper administration of justice, its duty is, nonetheless, to impart, in a manner consistent with its obligations and responsibilities, information and ideas on all matters of public interest (paragraph 48)

(...) the publication of photographs and articles whose sole purpose is to satisfy the curiosity of a particular reader regarding the details of the private life of a public figure cannot be considered to contribute to any debate of general interest to society, even though the person is known to the public. Under such conditions, freedom of expression requires a stricter interpretation (...). (paragraph 50).

(...) In verifying whether the authorities have achieved a fair balance between two protected values guaranteed by the Convention that may conflict with each other in such cases—the freedom of expression protected by Article 10 and the right to respect for private life enshrined in Article 8—the Court must balance the public interest in the publication of information and the need to protect private life (see *Hachette Filipacchi Associés v. France*, no. 71111/01, § 43, ECHR 2007-VII). (Paragraph 51). (The underlining is ours)

On the other hand, and being of interest in the case at hand, it is worth mentioning the judgment 27/2020, of February 24, delivered by the Constitutional Court in its case number 1379/2017, which analyzes the limits that must be imposed on the use of a person's image as an informational resource. Thus, after pointing out that we must insist again that the physical aspect, as a basic instrument of identification and external projection and an essential factor for one's own recognition as a person, constitutes the first element shaping the personal sphere of every individual (Constitutional Court Judgments 156/2001, FJ 6 and 99/1994, FJ 5), it concludes that the primary rule for achieving the protection of this fundamental right is that in order to capture, reproduce, and/or publish the image of a person, unequivocal consent is indispensable, with exceptions being rare cases in which such authorization is not required (...). (The underlining is ours)

And, subsequently, it reasons as follows:

"when the right to one's own image collides with other goods or rights constitutionally protected, particularly the freedoms of expression and information (art. 20.1.a and d CE), the different conflicting interests must be weighed, and, taking into account the specific circumstances of each case, it must be decided which interest deserves greater protection" (Constitutional Court Judgments 105/1990, of June 6; 72/2007, FJ 5 and 156/2001, FJ 6). (...) As can be easily deduced, this occurs not only in its confrontation with the rights to honor and privacy but also with the fundamental right to one's own image, for example, in those cases where information disseminates photographs or video clips that can only be understood as

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mere instruments for satisfying the curiosity of others and have been included not with an informative function, but with the aim of quenching the expectation that, in those terms, a particular piece of news can raise." (the underline is ours)

(...) the image of an anonymous or unknown individual, or in other words, one who does not hold a public office or a profession of notoriety, even if captured in a public place, cannot be used without their express consent, except in two cases. Firstly, when the person appears in the photograph in a merely accessory and inconsequential manner, without any prominence. Secondly, in the case where the initially anonymous person's participation in the newsworthy event is principal or prominent, in

which case their fundamental right to their image must yield to the right to information, precisely due to the non-accessory role that the subject has assumed. (...)

Although the risks of intrusion have increased exponentially with the mass use of social networks, to ward them off we must continue to start from the same basic principle that governs the analog environment and affirm that the constitutional recognition of the fundamental rights included in Article 18 of the Spanish Constitution entails the individual's power to control the data circulating on the social network that concerns them. Consequently, we reiterate that, unless there is unequivocal authorization for the capture, reproduction, or publication of the image by its owner, the interference in the fundamental right to one's own image must necessarily be justified by the prevailing public interest in accessing and disseminating it. (...) Consent only protects that which constitutes the object of the declaration of will. The holder of the fundamental right must authorize the specific act of using their image and the purposes for which it is granted. Consent given, for example, for the capture of the image does not extend to other subsequent acts, such as its publication or dissemination.

Taking the above into account, and it being established that there has been processing of personal data that constitutes an intrusion into the fundamental right of the claimant to the protection of their personal data, it should be noted that the individual affected by this violation was a minor at the time of the events. In this regard, it should be pointed out some of the numerous judicial pronouncements that highlight the reinforced protection that should be afforded to minors against illegitimate intrusions into their fundamental rights.

Thus, as indicated by the Supreme Court, First Chamber, of Civil, in its Judgment 1003/2008 of October 23, 2008, (Rec. 174/2005, Legal Foundation second)

The Constitution, in its Article 18, generally recognizes the right to honor, personal and family privacy, and to one's own image, and in Article 20.1.d) the right to freely communicate or receive truthful information by any means of dissemination, specifying that this freedom finds its limit in respect for the rights recognized in this title and "especially in the right to honor, to privacy, to one's own image, and to the protection of youth and childhood." In line with the above, the special protection that must be given to data relating to minors has been enshrined in the Organic Law 1/96, of January 15, on the Legal Protection of Minors.

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In the interpretation of these fundamental rights, the Constitutional Court has indicated that for the right to privacy to legitimately oppose the right to freedom of receiving or transmitting information, it is necessary that the disseminated news lacks public interest or, even if it is of public interest, lacks truthfulness. In a democratic society that proclaims respect for the dignity of the person as one of the principles inspiring its coexistence, the disclosure of facts belonging to the privacy of individual citizens should not be tolerated, nor should the dissemination of untruthful news be tolerated—not in the sense that the news does not exactly match what occurred, but in the sense that the publisher has exercised the necessary diligence to ensure that what is being disclosed is not merely a rumor -Judgments of the Constitutional Court 54/2004, of April 15, and 61/2004, of April 19-.

However, in cases involving minors, constitutional doctrine has granted a scope of super-protection that requires extreme caution regarding the information provided about them, even if it has public interest. Thus, the Constitutional Court has indicated that the legitimate interest of a minor in not having data related to their family or personal life disclosed "seems to impose an insurmountable limit on both freedom of expression and the fundamental right to freely communicate truthful information, without the alleged truthfulness of what is revealed exonerating the media from responsibility for the intrusion into the private life of both minors," even if the news deserves the qualification of neutral information -Judgment of the Constitutional Court of July 15, 1999-. (the underlining is ours)

In this same line, it is worth noting the pronouncement of the Supreme Court in its Judgment 777/2021 of November 11, 2021, (First Chamber, Civil, Rec. 6775/2020)

The notoriety of the parents does not simply allow for the transfer to their minor children of the public

notoriety modulating factor in the protection of the rights to privacy and image (judgments of this chamber 792/2004, of July 12, 123/2009, of February 25, and 456/2009, of June 17; STC 134/1999, of July 15). The legal system provides special protection to the interest of the minor when it comes to the capture and dissemination of images of children and adolescents in the media.

In the words of STC 158/2009, of June 29, 2009 (FJ 4):

"It should be noted that, in accordance with art. 20.4 CE, the freedoms of expression and information have their limit in the respect for the rights recognized in Title I, in the laws that develop it 'and, especially, in the right to honor, to privacy, to one's own image, and to the protection of youth and childhood.' Likewise, international norms for the protection of children should not be overlooked (regarding whose interpretative value under art. 10.2 CE it is unnecessary to insist), and, among them, particularly, the United Nations Convention on the Rights of the Child (ratified by Spain by Instrument of November 30, 1990), which guarantees the right of children to legal protection against arbitrary or unlawful interference in their private life (art. 16), as well as the Resolution of the 13/18

European Parliament regarding the European Charter of the Rights of the Child, which establishes that "every child has the right not to be the subject of unjustified intrusions by a third party into their private life, that of their family, nor to suffer illegal attacks on their honor" (paragraph 29 of § 8 of Resolution A 3-0172/92 of July 8).

"In turn, Organic Law 1/1982, of May 5, on the protection of the right to honor, privacy, and one's own image, after establishing that there will be no illegitimate intrusion in the protected area when the holder of the right has given their express consent for that purpose (art. 2), specifies subsequently in its art. 3, regarding minors (and incapacitated persons), that their consent must be given by themselves, if their maturity conditions allow it, and if not, the consent must be granted in writing by their legal representatives, who are obliged to inform the Public Prosecutor's Office in advance of the projected consent, and the Judge must resolve whether, within eight days, the Public Prosecutor's Office opposes.

"The provisions of art. 3 of Organic Law 1/1982 are complemented, regarding minors, by the provisions of art. 4 of Organic Law 1/1996, of January 15, on the legal protection of minors, which, among other aspects, considers any use of their image or name in the media that may imply a detriment to their honor or reputation, or that is contrary to their interests, even if the consent of the minor or their legal representatives is obtained, as an illegitimate intrusion into the right to honor, personal and family privacy, and one's own image of the minor" (art. 4.3).

In short, when it comes to the dissemination of the image of minors in the media, the consent of the mature minor or their representatives is insufficient to legitimize the intrusion if there is a risk of harm to the minor's interests. (The emphasis is ours)

Finally, and considering it of interest due to its similarity to the facts analyzed in this initiation agreement of sanctioning procedure, let us remember that this Agency has already carried out sanctioning procedures against publications of images of minors, and whose arguments have been analyzed by the Courts of Justice. Thus, for example, although it analyzes the previous applicable regulations, its arguments are fully applicable to the present case, it is worth highlighting the Judgment of October 20, 2011, of the National Court, Administrative Litigation Chamber (Rec.347/2009), which dismisses the appeal filed against the sanctioning resolution of the Spanish Agency for Data Protection for the publication of a video on YOUTUBE with images captured in the street of minors that allow their identification. The aforementioned judgment dismisses the appeal filed "because it is sanctioned for having dealt with the images of the minors appearing in the aforementioned video, which allow their identification, which constitute personal data under article 3.a) of the LOPD, images captured in public spaces and disseminated on YouTube without their consent."

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In the specific case examined, as we have indicated, EDA TV published on its website and

disseminated through its social media the image of the claimant, who was a minor at the time of the capture and publication of said image. Furthermore, the extent of the dissemination must be taken into account, considering that the publication in question has been available to the thousands of followers of EDA TV's various social media platforms. Additionally, it continued to be available at the time of the adoption of the agreement to initiate the present sanctioning procedure for the followers of its Telegram channel.

For all the above reasons, in this case, it can be considered that the processing carried out by EDA TV was excessive, since the dissemination of the image of the minor was unnecessary for the informational purpose that could be understood as being pursued by EDA TV. Consequently, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to EDA TV for violation of Article 5.1.c) of the GDPR.

V

Classification and qualification of the infringement of Article 5.1.c) of the GDPR

In accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that EDA TV has processed data that was excessive as it was not necessary for the purpose for which it was processed. The known facts constitute an infringement attributable to EDA TV of Article 5.1.c) of the GDPR, with the scope expressed in the previous Legal Grounds, which, if confirmed, constitute the commission of the infringement classified in Article 83.5, paragraph a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

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"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Proposal for a sanction for the infringement of Article 5.1.c) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered (paragraph a). In the case at hand, the publication of personal

data—its image—by EDA TV implies the possibility of immediate and wide dissemination of the content, considering the high number of subscribers across the various news dissemination channels that EDA TV has.

- The intentionality or negligence in the infringement (paragraph b). The publication of the personal data of the claimant was carried out directly by EDA TV, intentionally, on its website and was disseminated through various social media platforms owned by it.
- The impact on the rights of minors (Article 76.2.f) of the LOPDGDD in relation to Article 83.2 k) of the GDPR). EDA TV processed personal data belonging to a minor without her consent, so, given her special vulnerability, it can be considered that an infringement of her right to personal data protection would have particularly significant implications and consequences.

The balance of the circumstances considered, with respect to the infringement committed by violating what is established in Article 5.1.c), allows for the imposition of an administrative fine of 5,000 euros (five thousand euros).

VII

Confirmation of provisional measures

Article 69 of the LOPDGDD states that:

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“1. During the execution of preliminary investigation proceedings or upon the initiation of a procedure for the exercise of sanctioning authority, the Spanish Agency for Data Protection may, with justification, agree on the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of the Regulation, the precautionary blocking of data, and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Agency for Data Protection considers that the continuation of the processing of personal data, its communication, or international transfer would seriously undermine the right to the protection of personal data, it may order the data controllers or processors to block the data and cease its processing, and in the event of non-compliance with such mandates, proceed to immobilization.” (...)

For its part, Article 56 of the LPACAP states the following regarding provisional measures:

“1. Once the procedure has been initiated, the administrative body competent to resolve may adopt, ex officio or at the request of a party and with justification, the provisional measures it deems appropriate to ensure the effectiveness of the resolution that may be issued, if there are sufficient elements of judgment for this, in accordance with the principles of proportionality, effectiveness, and minimal burden. (...)

3. In accordance with the provisions of the two preceding paragraphs, the following provisional measures may be agreed upon, under the terms provided in Law 1/2000, of 7/01, on Civil Procedure:

- a) Temporary suspension of activities.
- b) Provision of guarantees.
- c) Withdrawal or intervention of productive assets or temporary suspension of services for reasons of health, hygiene, or safety, the temporary closure of the establishment for these or other causes provided for in the applicable regulatory legislation.
- d) Preventive seizure of assets, income, and fungible goods computable in cash by application of certain prices.
- e) The deposit, retention, or immobilization of movable property.
- f) The intervention and deposit of income obtained through an activity considered illegal and whose prohibition or cessation is sought.
- g) Consignation or establishment of a deposit of the amounts claimed.
- h) The retention of income owed by Public Administrations.
- i) Any other measures that, for the protection of the rights of the interested parties, are expressly

provided for by law, or that are deemed necessary to ensure the effectiveness of the resolution.

4. Provisional measures that may cause harm that is difficult or impossible to repair to the interested parties or that involve a violation of rights protected by law shall not be adopted.

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5. Provisional measures may be lifted or modified during the processing of the procedure, either ex officio or at the request of a party, by virtue of unforeseen circumstances or circumstances that could not be taken into account at the time of their adoption. In any case, they shall cease to be in effect when the administrative resolution that concludes the corresponding procedure takes effect.

In light of the circumstances analyzed in this resolution of the sanctioning procedure, it is understood that EDA TV is carrying out excessive processing of personal data, particularly as it affects a minor at the time of the publication. Therefore, it is considered that the continuation of the processing could result in a very serious and irreparable detriment to the fundamental right to the protection of personal data.

Consequently, in order to safeguard and guarantee the rights and freedoms of the affected parties, in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, the order directed to EDA TV to adopt the measure consisting of suspending the processing of the personal data subject to the complaint is confirmed and made definitive, through the removal of the content published on EDA TV's Telegram channel ('***CANAL.1'), for which a period of ten working days was granted from the notification of the initiation agreement of the sanctioning procedure for it to justify its adoption before this Agency.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO IMPOSE on EDA TV CONSULTING S.L. with CIF B88605266, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR, a fine of €5,000 (five thousand euros).

SECOND: To confirm and make definitive the following measure imposed on EDA TV CONSULTING S.L. with CIF B88605266, whose compliance must be evidenced the day after the notification of this sanctioning procedure resolution:

- The removal of the content subject to the complaint published on its Telegram channel ('***CANAL.1').

THIRD: TO NOTIFY this resolution to EDA TV CONSULTING S.L. with CIF B88605266.

FOURTH: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired, without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000

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0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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